

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

Index No.:

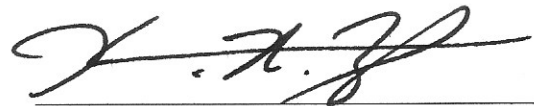
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ALEKSEY L. BELOV,

Plaintiff,

- against -

THE CITY OF NEW YORK, P.O. JAMES GIAMBOI
(SHIELD #05153) on Arrest #K1167880, and P.O. JOHN
DOE "1" through "10" on Arrest #K1167880,Defendants.
-----X**SUMMONS**Plaintiff designates KINGS
County as the place of trial.The basis of venue is where the
Tort arose.The Tort arose in:
KINGS COUNTY**To the above named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: JAMAICA, NEW YORK
JULY 16, 2014Kareem R. Vessup
LAW OFFICE OF KAREEM R. VESSUP
ESQ.
Attorneys for Plaintiff
ALEKSEY L. BELOV
89-31 161st Street, Suite 705
Jamaica, NY 11432
(718) 219-8744 – P
(718) 228-7733 – F
Our File #: 12-1317TO: THE CITY OF NEW YORK
NYC Law Department
350 Jay Street

Brooklyn, NY 11201

P.O. James Giamboi
One Police Plaza
New York, NY 10038

P.O. John Doe "1" – "10"
One Police Plaza
New York, NY 10038

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

-----X
ALEKSEY L. BELOV,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

- against -

THE CITY OF NEW YORK, P.O. JAMES GIAMBOI
(SHIELD #05153) on Arrest #K1167880, and P.O. JOHN DOE
"1" through "10" on Arrest #K1167880,

Defendants.

-----X

Plaintiff **ALEKSEY L. BELOV**, by his attorney THE LAW OFFICE OF KAREEM R. VESSUP ESQ., complaining of the Defendants, respectfully allege upon information and belief, as follows:

1. At all times herein mentioned, Plaintiff **ALEKSEY L. BELOV** was, and still is, a resident of the County of Kings, City and State of New York.
2. At all times herein and mentioned, Defendant **THE CITY OF NEW YORK** was, and still is, a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about July 24, 2011 and within (90) days after the claim herein arose, the plaintiff served a Notice of Claim, in writing and sworn to on his behalf, upon the Defendant **THE CITY OF NEW YORK**, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant **THE CITY**

OF NEW YORK, of the nature, place, time and manner in which the arose, the items of damage and injury sustained so far as was then determinable.

4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within the time proscribed by law.

5. The plaintiff has complied with the request of the municipal Defendant for an oral examination pursuant to section 50h of the General Municipal Law in that a 50h hearing was held on July 18, 2012.

6. Upon information and belief, at all times mentioned, Defendants **P.O. JAMES GIAMBOI (Shield #05153) on ARREST # K11671880 and P.O. JOHN DOES "1" through "10" on ARREST # K11671880** were and are police officers of the Defendant **THE CITY OF NEW YORK**, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.

AS AND A FIRST CAUSE OF ACTION
AGAINST DEFENDANTS FOR BATTERY

7. Plaintiff repeats, reintegrates and re-alleges all of the allegations contained in paragraphs "1" through "6" with full force and effect as though set forth at length herein

8. That on or about July 24, 2011 at approximately 7:20pm at or near 3152 Brighton 6th Street Brooklyn, NY, the defendants jointly and severally in their capacity as police officers, subjected Plaintiff to a harmful and offensive touching in that Defendants wrongfully touched, grabbed, handcuffed and seized the Plaintiff **ALEKSEY L. BELOV** in an excessive manner about his person, causing him physical pain and mental suffering.

9. At no time did the Defendants have legal cause to harm and touch Plaintiff in the manner in which they did.

10. The plaintiff did not consent to this illegal touching nor was this touching privileged by law.

AS AND FOR SECOND CAUSE OF ACTION
AGAINST DEFENDANTS FOR ASSAULT

11. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "10" with full force and effect as though set forth at length herein.

12. That on or about July 24, 2011 at approximately 7:20pm at or near 1352 Brighton 6th Street Brooklyn, NY, the Defendants jointly and severally in their capacity as police officers, subjected plaintiff to a reasonable apprehension of an imminent, harmful and offensive touching.

13. As a result of the Defendants' actions Plaintiff was damaged including, but not limited to, anxiety, embarrassment, fear, frustration and mental anguish.

14. At no time did the Defendants have legal cause to assault Plaintiff in this manner.

15. The Plaintiff did not consent to this assault nor was it privileged by law.

AS AND FOR A THIRD CAUSE OF ACTION
AGAINST DEFENDANTS FOR EXCESSIVE USE OF PHYSICAL FORCE

16. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "15" with full force and effect as though set forth at length herein.

17. That on or about July 24, 2011 at approximately 7:20pm at or near 1352 Brighton 6th Street Brooklyn, NY, the Defendants jointly and severally in their capacity as police officers

owed Plaintiff **ALEKSEY L. BELOV** a duty to use a reasonable amount of force in the performance of their police duties.

18. That on or about July 24, 2011 at approximately 7:20pm at or near 1352 Brighton 6th Street Brooklyn, NY, the Defendants jointly and severally in their capacity as police officers, breached their duty to Plaintiff by subjecting him to an amount of physical force that exceeded the force necessary to achieve an arrest.

19. As a direct and proximate result of the foregoing conduct of the defendants Plaintiff was damaged.

20. The Plaintiff did not consent to this unreasonable use of force nor was it privileged by law.

AS AND FOR A FOURTH CAUSE OF ACTION
AGAINST DEFENDANTS FOR CONSTITUTIONAL VIOLATIONS

21. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "20" with full force and effect as though set forth at length herein.

22. Defendants **P.O. JAMES GIAMBOI (Shield #05153) on ARREST # K11671880 and P.O. JOHN DOES "1" through "10" on ARREST # K11671880** were at all times relevant, duly appointed and acting officers of the New York City Police Department.

23. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies, customs and usage of the New York and/or City of New York

24. Plaintiff **ALEKSEY L. BELOV** is and at all times relevant herein, a citizen or legal resident of the United States and a resident of Kings County in the State of New York, and

brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

25. The Defendant **THE CITY OF NEW YORK** is a municipality duly incorporated under the laws of The State of New York.

26. That on or about July 24, 2011 at approximately 7:20pm at or near 1352 Brighton 6th Street Brooklyn, NY, the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized Plaintiff **ALEKSEY L. BELOV** in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch the Plaintiff. The Plaintiff did not consent to this illegal touching nor was his touching privileged by law.

27. That on or about July 24, 2011 at approximately 7:20pm at or near 1352 Brighton 6th Street Brooklyn, NY, the Defendants jointly and severally did place Plaintiff **ALEKSEY L. BELOV** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and/or other objects which they used to physically seize, strike and/or restrain the Plaintiff. All of the above actions places the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

28. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution.

- a. Freedom of assault to his person;
- b. Freedom from battery to his person
- c. Freedom from the excessive use of force during the arrest process.

29. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiffs rights or with deliberate indifference to those rights afforded individuals by the Fourth and Fourteenth Amendments to the United States Constitution.

30. The direct and proximate results of the Defendants' acts are that the Plaintiff was forced to endure pain and suffering, all to his detriment. He has suffered severe and permanent injuries of a psychological nature.

AS AND FOR A FIFTH CAUSE OF ACTION
AGAINST DEFENDANTS FOR NEGLIGENT TRAINING AND SUPERVISION

31. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "30" with full force and effect as though set forth at length herein.

32. The Defendant **THE CITY OF NEW YORK** owed Plaintiff a duty to properly train and supervise its police officers.

33. Defendant **THE CITY OF NEW YORK** breached its duty in that they have grossly failed to train and adequately supervise its police officers in the fundamental law that its police officers should only use reasonable force to effectuate a lawful arrest.

34. **THE CITY OF NEW YORK** breached its duty by failing to implement a policy with its Police Department and instruct police officers that the use of force should only be reasonable when an individual resists arrest and should not be used where and individual is not resisting arrest.

35. **THE CITY OF NEW YORK** breached its duty by failing to implement a policy with its Police Department or actively enforce the law, if anyone of the following are lacking:

1. Force cannot be used against an individual who does not physically resist arrest

2. The amount of force used must be reasonable under the circumstances and only the degree of force necessary to achieve a lawful police objective.

3. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.

36. The foregoing acts, omissions and systemic failures are customs and policies of **THE CITY OF NEW YORK** which caused the police officers to assault, batter and utilize unreasonable force upon Plaintiff and deny him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper prudent steps in this case.

37. As a result of the foregoing failures by Defendant **THE CITY OF NEW YORK**, Plaintiff suffered physical, emotional and psychological injuries.

AND AS FOR A SIXTH CAUSE OF ACTION
AGAINST DEFENDANTS FOR NEGLIGENT RETENTION

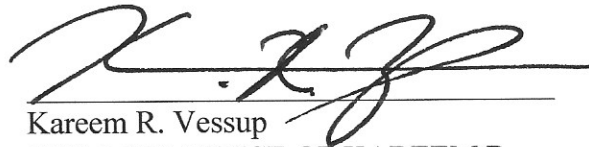
38. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "37" with full force and effect as though set forth at length herein.

39. Defendant **THE CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, **THE CITY OF NEW YORK** knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and

employed by **THE CITY OF NEW YORK** and that these officers should have had adequate supervision so that they would not use excessive force during the arrest process.

WHEREFORE, Plaintiffs demand judgment against the Defendants, together with the costs and disbursements of this action in an amount that exceeds the jurisdictional limit if all lower courts, together with punitive damages, and attorney's fees and cost for bringing this case.

Dated: JAMAICA, NEW YORK
JULY 16, 2014



Kareem R. Vessup
THE LAW OFFICE OF KAREEM R.
VESSUP ESQ.
Attorney for Plaintiff
ALEKSEY L. BELOV
89-31 161st Street, Suite 705
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File No.: 12-1317

ATTORNEY'S VERIFICATION

KAREEM R. VESSUP, an attorney daily admitted to practice before the Courts of the State of New York, affirms the following to be true under penalties of perjury.

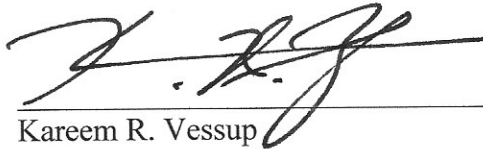
I am a principal of the Law Office of Kareem R. Vessup, with an attorneys-of-record for Plaintiffs ALEKSEY L. BELOV in the action within. I have read the annexed

SUMMONS AND VERIFIED COMPLAINT

and I know the contents thereof, and the same are true to my knowledge, except those matters therein, which are stated to be alleged upon information contained in my files.

The reason I make the foregoing affirmation instead of the Plaintiffs is because the Plaintiffs are not presently in the county wherein I maintain my law office.

Dated: JAMAICA, NEW YORK
JULY 16, 2014


Kareem R. Vessup

Index No.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

ALEKSEY L. BELOV,

Plaintiff,

- against -

THE CITY OF NEW YORK, P.O. JAMES GIAMBOI (Shield #05153) on Arrest#K1167880, and
P.O. JOHN DOE "1" through "10" on Arrest #K1167880,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

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